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| 3 | 30-2012-01200991<br>Saavedra vs. Evergreen Alliance Golf Limited, L.P. | <p>The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Defendant has shown that the Administrator's work is complete, the court's file is now closed.</p> <p>Defendant is ordered to give notice of this ruling.</p>                                                                     |
| 4 | 30-2022-01297827<br>Valencia vs. Mittera Group, Inc.                   | <p>The tentative ruling is to continue the Final Report Hearing to January 25, 2027 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date.</p> <p>Plaintiff is ordered to give notice of this ruling to Defendant.</p> |
| 5 | 30-2023-201320697<br>Santa Cruz vs. Tectonic Transport                 | <p>The tentative ruling is to continue the Final Report Hearing to January 25, 2027 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date.</p> <p>Plaintiff is ordered to give notice of this ruling to Defendant.</p> |
| 6 | 30-2018-00983513<br>Palacios vs. Weldek Inc.                           | <p>The tentative ruling is to continue the hearing on Plaintiff Faustino Sanchez Palacios' ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement to October 19, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date.</p>                                                                                                                                                                              |

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|  | <p>There is no explanation for the change in the number of class members to 232, when the number was estimated to be 195 at the preliminary approval stage.</p> <p>The parties have not identified the number of aggrieved employees included in this settlement.</p> <p>An invoice from the Administrator is required to support the \$8,000 Administrator fee request.</p> <p>The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount or \$268,200.00, which the court finds fair, adequate and reasonable for the settlement of this size.</p> <p>No [Proposed] Order and Judgment was provided. The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771(b), which states: "Notice of the judgment must be given to the class in the manner specified by the court." The notice may be included with the checks that are mailed to the class members or posted on the administrator's website.</p> <p>Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the class members. All supporting papers must be filed at least 16 days before the Final Report Hearing date.</p> <p>Plaintiff has not shown that he served the LWDA with his moving papers. Plaintiff is ordered to give notice of this ruling to the LWDA, and to Defendant, to serve the LWDA with his original moving papers as well as any new papers filed for future hearings, and to file a proof of service showing such compliance.</p> |
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| 7 | 30-2021-01192697<br>Hernandez vs.<br>Amazon.com Services,<br>LLC | <p>The tentative ruling is to continue the hearing on Plaintiff Guillermo Hernandez’s (“Plaintiff”) Motion for Final Approval of Class Action and PAGA Settlement and Plaintiff’s Motion for Attorneys’ Fees, Costs, and Incentive Award to September 21, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court’s concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date.</p> <p>Despite the court’s previous Minute Order, the parties have failed to address the following issues:</p> <ul style="list-style-type: none"> <li>• The number of aggrieved employees included in the settlement is not provided.</li> <li>• The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771 (b), which states: “Notice of the judgment must be given to the class in the manner specified by the court.” The notice may be included with the checks that are mailed to the class members or posted on the administrator’s website.</li> <li>• Paragraph 19 of the [Proposed] Order and Judgment must be removed as the dismissal of claims violates C.R.C., Rule 3.679(h).</li> </ul> <p>Plaintiff is ordered to give notice of this ruling.</p> |
| 8 | 30-2023-01344326<br>Anaya vs. Worldpac,<br>Inc.                  | <p>Plaintiff Carlos Anaya’s (“Plaintiff”) Motion for Final Approval of Class Action and PAGA Settlement is <b>GRANTED IN PART</b>.</p> <p>An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff’s contribution to the case.</p> <p>The court also finds that an attorneys’ fee award totaling \$355,425.00 or 30% of the Gross Settlement Amount, which constitutes a 1.64 multiplier of the lodestar amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved.</p> <p>The court concludes that the \$1,184,750.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards:</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |